

24STCV21750 24STCV21750

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-02

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Case Number: 24STCV21750 Hearing Date: September 2, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Hovhannes Vardanyan

, et al.;

Plaintiffs,

vs.

Volkswagen Group of America

, et al.,

Defendants.

Case No.:

24STCV21750

Hearing Date:

September 2, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

to STRike or Tax Memorandum of Costs

MOVING PARTY: Defendants Volkswagen Group of
America, Inc. and LAD-V, LLC

RESPONDING

PARTY: Plaintiffs Hovhannes Vardanyan and Ohan
Melkonyan

Motion to Strike

or Tax Memorandum of Costs

The court considered the moving
and opposition papers filed in connection with this motion. No reply was filed.

DISCUSSION

Defendants

Volkswagen Group of America, Inc. and LAD-V, LLC ("Defendants") move to strike
or tax the memorandum of costs filed by plaintiffs Hovhannes Vardanyan and Ohan
Melkonyan ("Plaintiffs").

"A 'verified
memorandum of costs is prima facie evidence of the propriety' of the items
listed on it, and the burden is on the party challenging these costs
to demonstrate that they were not reasonable or necessary." (Adams
v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 [internal citation
omitted].)

First, the court
denies Defendants' request to strike the memorandum in its entirety. The

memorandum is timely, because the time to serve and file a memorandum of costs runs from the date of written notice of entry of judgment or dismissal, not verbal notice. (Cal. Rules of Court, Rule 3.1700, subd. (a)(1).) Further, the absence of supporting documentation does not bear upon the verification of the memorandum by counsel. (Ibid.)

Second,

the court grants the motion to tax costs as to Item 8, totaling \$2,908.40, in its entirety, because this item pertains on its face to expert fees not ordered by the court or authorized by statute. (Code Civ. Proc., § 1033.5, subd. (b)(1).)

Third,

the court denies the motion as to the remainder of the costs because Defendants have not carried their burden to present evidence rebutting the prima facie showing in the memorandum of costs that the remainder of the costs are proper. (Adams, supra, 199 Cal.App.4th at 1486.)

ORDER

The court grants

in part defendants Volkswagen Group of America, Inc. and LAD-V, LLC's motion to strike plaintiffs Hovhannes Vardanyan and Ohan Melkonyan's memorandum of costs as follows:

The court orders

that the following costs are taxed from plaintiffs Hovhannes Vardanyan and Ohan Melkonyan's memorandum of costs: \$2,908.40 in expert fees (Item 8.)

The court orders

that plaintiffs Hovhannes Vardanyan and Ohan Melkonyan shall recover \$840.76 in costs from defendants Volkswagen Group of America, Inc. and LAD-V, LLC.

The court orders defendants

Volkswagen Group of America, Inc. and LAD-V, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 2, 2026

Robert B. Broadbelt III

Judge of the Superior Court